

Acts and this Act may be cited together as the Sale of Food and Drugs Acts, 1875 to 1927.

Commence-
ment.

3. This Act shall come into operation at the date of the passing of this Act.

CHAPTER 6.

An Act to authorise an increase of the number of Forestry Commissioners; to empower the Commissioners to make byelaws with respect to land vested in them or under their management or control; and for purposes consequential upon the matters aforesaid. [12th April 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase of
number of
Forestry
Commis-
sioners.

9 & 10
Geo. 5. c. 58.

1.—(1) For the purpose of assisting the Forestry Commissioners in promoting employment by increasing the acreage under timber, the number of Forestry Commissioners (hereinafter referred to as the Commissioners) that may be appointed by His Majesty under subsection (1) of section one of the Forestry Act, 1919 (hereinafter referred to as the principal Act), shall be increased from eight to ten.

(2) Each of the persons first appointed to be ninth and tenth Commissioner respectively shall vacate office upon the expiration of the term of office of the other Commissioners in office at the date of his appointment, but shall be eligible for re-appointment in like manner as they are.

Power to
make and
enforce bye-
laws.

2.—(1) Subject to the provisions of this section, the Commissioners may make such byelaws with respect to any land, being land vested in them or under their management or control to which the public have or may be permitted to have access, as appear to them to be necessary for the preservation of any trees or timber on the land or of any property of the Commissioners, and for prohibiting or regulating any act or thing

tending to injury or disfigurement of the land or the amenities thereof, and, without prejudice to the generality of the foregoing provisions, for regulating the reasonable use of the land by the public for the purposes of exercise and recreation :

Provided that—

- (a) no byelaws made under this section shall take away or injuriously affect any estate, interest, right of common or other right of a profitable or beneficial nature in, over or affecting any land, except with the consent of the person entitled thereto; and
- (b) no byelaws made under this section shall apply to any common which is subject to a scheme or regulation made in pursuance of the Metropolitan Commons Acts, 1866 to 1898, or the Inclosure Acts, 1845 to 1882, or the Commons Act, 1899; and
- (c) no byelaws shall be made under this section with respect to the New Forest or the Forest of Dean except after consultation with the verderers of those forests respectively.

62 & 63 Vict
c. 30.

(2) Before any byelaw made under this Act comes into operation, a draft thereof shall be laid before each House of Parliament for a period of not less than twenty-one days on which that House has sat, and if either House, before the expiration of that period, presents an Address to His Majesty praying that it shall be annulled, no further proceedings shall be taken thereon, but without prejudice to the making of any new draft byelaw.

(3) The power and duty of making byelaws under this section and of enforcing any such byelaws shall be deemed to be included among the powers and duties of the Commissioners under the principal Act, and the Commissioners may authorise any officer or servant appointed or employed by them to exercise and perform on their behalf such powers and duties as they may consider necessary for the enforcement of such byelaws, and in particular, to remove or exclude, after due warning, from any land to which the byelaws relate any person who commits, or whom he reasonably suspects of committing, an offence against this Act or against the Vagrancy Act, 1824.

5 Geo. 4.
c. 83.

(4) Any person who fails to comply with or acts in contravention of any byelaw made under this section, or obstructs any officer or servant appointed or employed by the Commissioners in the due exercise or performance of his powers or duties under this section, shall be guilty of an offence against this Act, and shall be liable on summary conviction to a fine not exceeding five pounds, and in the case of a continuing offence, to a further fine not exceeding ten shillings for each day upon which the offence continues.

(5) Without prejudice to the power of any other court in relation to any offence against this Act, the verderers of the New Forest and of the Forest of Dean may, in their courts, inquire into offences against this Act alleged to have been committed within those forests respectively, and may punish such offences so committed, and those courts shall, as respects their jurisdiction under this Act, be deemed to be courts of summary jurisdiction, and the provisions of the Summary Jurisdiction Acts, including the provisions as to the recovery of fines and as to appeals, and the provisions of any rules made under those Acts, shall apply accordingly.

4 & 5 Geo. 5.
c. 58. (6) Subject to the provisions of section five of the Criminal Justice Administration Act, 1914, but notwithstanding anything in any other Act, any fine recovered under this section in any proceedings in England shall (unless the court for some special reason otherwise orders) be paid to the Commissioners.

Short title,
construc-
tion, cita-
tion, extent
and saving.

3.—(1) This Act may be cited as the Forestry Act, 1927, and shall be construed as one with the Forestry Acts, 1919 and 1923, and this Act and those Acts may be cited together as the Forestry Acts, 1919 to 1927.

(2) This Act shall not extend to Northern Ireland.

(3) Any byelaws made by the Commissioners under this Act shall be without prejudice to any byelaws made under any other Act by the verderers of the New Forest or Forest of Dean as respects those forests respectively, and the powers conferred by this Act upon the said verderers shall be in addition to and not in derogation of any other powers exercisable by them at the commencement of this Act.
